

Development Office

STAFF REPORT

Cooley Subdivision **Summation**

Zone District Map Amendment Process

CASE NUMBER(s): UDC-13-00160

FILE CODE:COOL-FPZ

PREPARED BY: Brett Walker

MEETING June 3, 2013 – Planning Commission

DATES: June 10, 2013 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Exhibit Map
- Applicant Criteria
- Complete Application

RECOMMENDATION: The Planning and Development Office recommends approval of the zone change request from **CB Community Business** to **MUB Mixed Use Business Emphasis**, pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC.

STAFF REPORT UPDATE (06/04/13): At its regular meeting Monday, June 3, 2013, the City of Cheyenne Planning Commission recommended approval of the above described Zone Change by a unanimous vote of 3 to 0. The recommendation was made pursuant to the criteria outlined in Section 2.2.1.d of the UDC.

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MEETING DATES: June 3, 2013 – Planning Commission
June 10, 2013 – City Council

OWNER: Dan Cooley
Cooley Construction, LLC
3347 Hales Ranch Rd.
Cheyenne, WY 82007

AGENT: Dan Cooley
Cooley Construction, LLC
3347 Hales Ranch Rd.
Cheyenne, WY 82007

PROJECT: Cooley Subdivision

WORK DESCRIPTIONS: Zone Change to accommodate mixed-use

LOCATION:

- (1) Legal Description: Lots 1 – 4, Block One, Cooley Subdivision, Cheyenne, Wyoming (Replat in Progress)
- (2) Located at the southwest corner of the intersection of Bluegrass Circle and Edgewater Avenue
- (3) Address: Vacant

SIZE: Total Area: 10,803 sqft

CURRENT ZONING: CB Community Business District

PROPOSED ZONING: MUB Mixed Use with Business Emphasis

EXISTING LAND USE: Vacant

PROPOSED LAND USE: Multifamily/Mixed-Use

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Commercial	CB	City
South	Residential	HR-2	City
East	Vacant	HR-2	City
West	Residential	HR-2	City

EXECUTIVE SUMMARY:

This Zone Change Request has been submitted in conjunction with a Expedited Preliminary Plat application. Specifically, the Request is for Lots 1-4, Block One, to be changed from **CB Community Business** to **MUB Mixed Use Business Emphasis**. The project will also require a Site Plan Review or Plot Plan Review, at which time the parking, landscaping, accesses and other design requirements will be evaluated for compliance.

The MUB Lot Standards refer to the lot types allowed in the NR-3 district and the NB district. This lot has remained undeveloped since it was platted 32 years ago. If developed in CB district, there would be some significant restrictions. For example, any project would require a 10' landscape buffer along the south and west sides, as well as a 25' setback from the streets.

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following criteria:

PlanCheyenne. *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

The application is in accordance with the development policies and physical patterns identified in the PlanCheyenne. In general it will provide a mix of housing choices (ref. Foundation 1, PlanCheyenne). The project, again by way of the Greenway, provides opportunities to support bicycle and pedestrian mobility (ref. Foundation 4, PlanCheyenne). The project also promotes elements of fiscally responsible development, such as infill development (ref. Foundation 7, PlanCheyenne).

This proposal increases the mix of housing types and very appropriately locates higher densities near activity centers with the commercial property to the north. This site also is within walking distance of Greenway Connector

Surrounding Area. *The application is compatible with nearby property, specifically considering*

existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas;

The proposed zone district is a mixed-use district and consistent with the comprehensive plan which contemplates Mixed-Use with a Commercial Emphasis for this area (see attached *Aerial Map 1*). Both CB and MUB are appropriate underlying zone districts as recommended. However, the CB district does not allow for any residential. The MUB district would allow for mixed-use development as well as high density residential, and would continue to create options for a variety of housing types in this area, which is adjacent to a commercial activity center to the north. This is an established neighborhood with a long history of both commercial and high-density residential development.

Zoning, Basic Standards and Uses. *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;*

In general the higher densities encouraged with the NR-3 zone district are more appropriate near higher intensity uses, such as the commercial to the north. This is a small lot and would have more limitations in the current CB district, as well as only being available for commercial use. Locating higher densities near activity centers optimizes access to the activity center by accommodating legitimate pedestrian access as well as vehicular access. This minimizes impacts on streets and also produces a buffer to the lower density development to the south.

Streets & Open Space. *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;*

This Zone Change Request is being submitted in conjunction with a Replat.

Zoning, Intent, Applicability and Design Objectives. *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

This zone district is intended for higher densities which are being proposed with this application. The proposal is also immediately adjacent to the commercial activity center to the north and the and Greenway system to the south and west. The location of this zone district is very much consistent with the intent, applicability and context described in the zone district (ref. 5.3.9a-c). The proposal is located in an area with an established transportation network to accommodate it.

Zoning, Future Development. *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

With MUB zoning, this site will have many options should the proposed project not materialize.

It could go completely commercial, or completely residential, or a mix of the two.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

GIS: Existing zoning is not CBD. **NOTE**: *Resolved. Corrected on Revised Map Submitted 5/24/13.*

Development: The smallest lot proposed is 1600 SF. Within the zone district a lot of this size has the potential to be developed as a townhouse lot (AD3). In general a townhouse is required to be built between 10' to 20' from the front property line. A townhouse is a series (more than 2) of attached principle units. **NOTE**: *Will be addressed at time of Site Plan or Plot Plan Review.*

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS: Urban Planning

AGENCIES AND REVIEWERS NOT RESPONDING: Engineering, City Attorney

OTHER COMMENTS RECEIVED: None

Encl: Zone Change Exhibit Map
Aerial Map 2

cc: Owner
Agent/Applicant
File

Approved as to
form only:
D. White
Date: June 5, 2013

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.1, ZONING MAP AMENDMENT, SECTION 5.1.2, ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3, OFFICIAL ZONING MAP, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS TO MUB MIXED-USE BUSINESS EMPHASIS FOR LOTS 1 THROUGH 4, BLOCK 1, COOLEY SUBDIVISION, CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED AT THE SOUTHWEST CORNER OF THE INTERSECTION OF BLUEGRASS CIRCLE AND EDGEWATER AVENUE)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein, has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on June 3, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lots 1 through 4, Block 1, Cooley Subdivision, Cheyenne, Wyoming, is hereby changed to MUB Mixed-Use Business Emphasis.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication and upon the official filing of the affiliated *Cooley Subdivision* final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

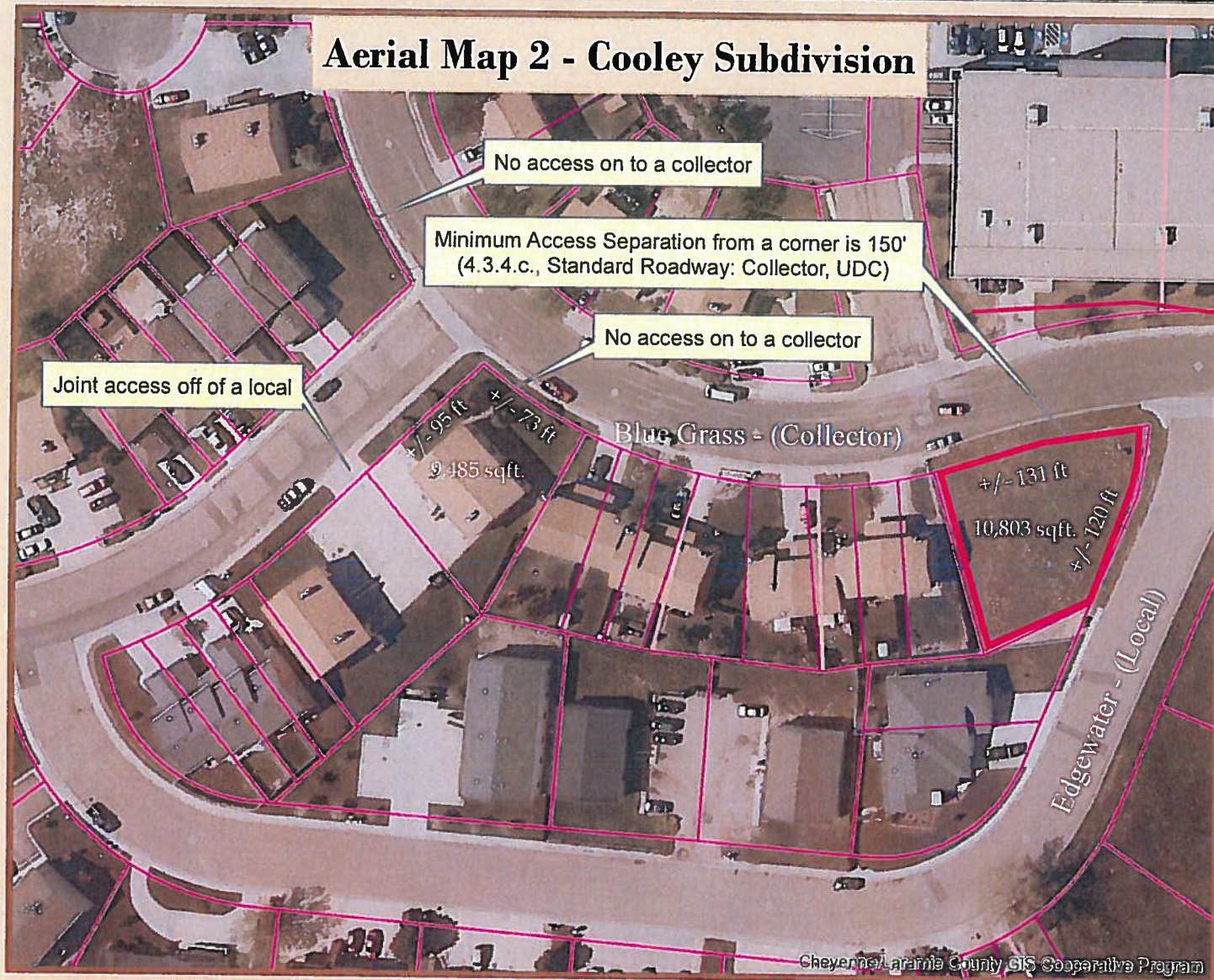
RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

Aerial Map 2 - Cooley Subdivision



Agent and Owner: Dan Cooley

Application Number(s):
UDC-13-00160/UDC-13-00159

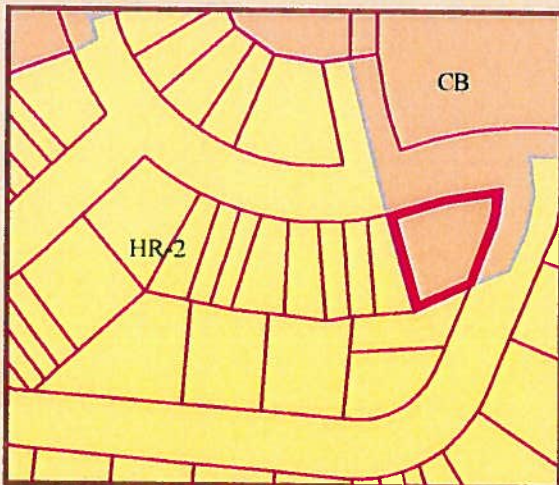
☒ Ownership
☒ Platted Info
☒ County Jurisdiction

1 in = 90 ft



Zone Districts

1 inch = 200 feet



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.



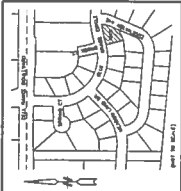
6 Dec 2012

BRW

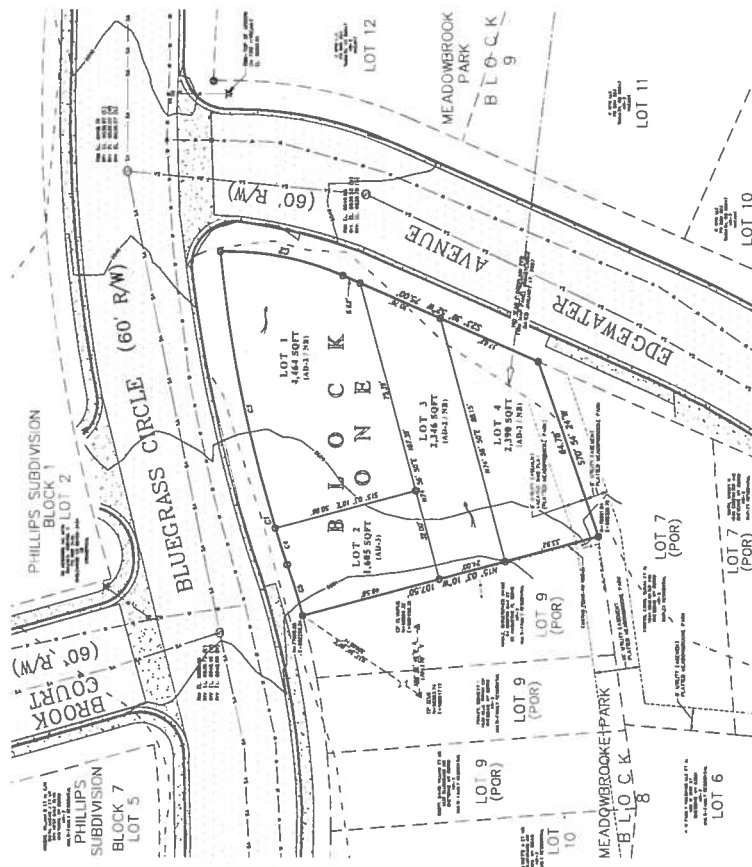
Future Land Use Map

1 inch = 200 feet





VICINITY MAP



COMPUTATION TABLE

ITEM	DESCRIPTION	AMOUNT
1	TOTAL LOT AREA	11,800 SF
2	MINIMUM LOT AREA	1,000 SF
3	MINIMUM LOT AREA	1,000 SF
4	MINIMUM LOT AREA	1,000 SF
5	MINIMUM LOT AREA	1,000 SF
6	MINIMUM LOT AREA	1,000 SF
7	MINIMUM LOT AREA	1,000 SF
8	MINIMUM LOT AREA	1,000 SF
9	MINIMUM LOT AREA	1,000 SF
10	MINIMUM LOT AREA	1,000 SF
11	MINIMUM LOT AREA	1,000 SF
12	MINIMUM LOT AREA	1,000 SF

LOT SUMMARY

LOT	AREA	PERCENT
1	1,000 SF	8.5%
2	1,000 SF	8.5%
3	1,000 SF	8.5%
4	1,000 SF	8.5%
5	1,000 SF	8.5%
6	1,000 SF	8.5%
7	1,000 SF	8.5%
8	1,000 SF	8.5%
9	1,000 SF	8.5%
10	1,000 SF	8.5%
11	1,000 SF	8.5%
12	1,000 SF	8.5%

ZONING

LOT	ZONING
1	CB
2	CB
3	CB
4	CB
5	CB
6	CB
7	CB
8	CB
9	CB
10	CB
11	CB
12	CB

NOTES

- 1) BASE OF CONCRETE CURB AND GUTTER SHALL BE 18" BELOW FINISH GRADE.
- 2) FINISH GRADE SHALL BE 18" BELOW FINISH GRADE.
- 3) FINISH GRADE SHALL BE 18" BELOW FINISH GRADE.
- 4) FINISH GRADE SHALL BE 18" BELOW FINISH GRADE.
- 5) FINISH GRADE SHALL BE 18" BELOW FINISH GRADE.
- 6) FINISH GRADE SHALL BE 18" BELOW FINISH GRADE.
- 7) FINISH GRADE SHALL BE 18" BELOW FINISH GRADE.
- 8) FINISH GRADE SHALL BE 18" BELOW FINISH GRADE.
- 9) FINISH GRADE SHALL BE 18" BELOW FINISH GRADE.
- 10) FINISH GRADE SHALL BE 18" BELOW FINISH GRADE.
- 11) FINISH GRADE SHALL BE 18" BELOW FINISH GRADE.
- 12) FINISH GRADE SHALL BE 18" BELOW FINISH GRADE.

ZONE CHANGE MAP FOR COOLEY SUBDIVISION

A REPLAT OF
LOT 8, BLOCK 8,
MEADOWBROOK PARK,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING.

Prepared April, 2013

STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
1800 W. 18th ST., CHEYENNE, WY 82001 (307) 632-1973
1700 E. 10th ST., CHEYENNE, WY 82001 (307) 632-1973



LEGEND

- 1. 18" ALUMINUM CAP STAMPED "SS"
- 2. 18" ALUMINUM CAP STAMPED "SS"
- 3. 18" ALUMINUM CAP STAMPED "SS"
- 4. 18" ALUMINUM CAP STAMPED "SS"
- 5. 18" ALUMINUM CAP STAMPED "SS"
- 6. 18" ALUMINUM CAP STAMPED "SS"
- 7. 18" ALUMINUM CAP STAMPED "SS"
- 8. 18" ALUMINUM CAP STAMPED "SS"
- 9. 18" ALUMINUM CAP STAMPED "SS"
- 10. 18" ALUMINUM CAP STAMPED "SS"
- 11. 18" ALUMINUM CAP STAMPED "SS"
- 12. 18" ALUMINUM CAP STAMPED "SS"

CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	17° 07' 30"	455.00'	N77° 45' 17"E	117.29'	117.33'
C2	25° 21' 00"	100.00'	S00° 50' 27"W	41.94'	44.30'
C3	17° 28' 44"	455.00'	N78° 17' 40"E	99.01'	99.17'
C4	1° 37' 46"	455.00'	N77° 01' 33"E	13.86'	13.91'
C5	3° 47' 22"	790.00'	N72° 06' 11"E	16.67'	16.67'